

25AVCV01343 25AVCV01343

County: los-angeles

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Case Number: 25AVCV01343 Hearing Date: September 17, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

DORENE MENAHERNANDEZ,

Plaintiff,

v.

BAGGETT TRANSPORTATION COMPANY, a Corporation; LOCKHEED MARTIN CORPORATION; and DOES 1 through 30, inclusive,

Defendants.

Case Number 25AVCV01343

[TENTATIVE]

RULING ON MOTION

Date of Hearing: September 17, 2026

Dept. A-14

Judge William H. Forman

I. Background

Defendant Baggett Transportation Company ("Baggett") moves the Court for leave to file a Cross-Complaint.

On October 10, 2025, Plaintiff Dorene MenaHernandez ("Plaintiff") filed her form Complaint against Defendants Baggett and Lockheed Martin Corporation ("Lockheed Martin") (together "Defendants"), asserting one cause of action for General Negligence. Plaintiff alleges that she was lawfully on the premises of Lockheed Martin, located at 1011 Lockheed Way, Palmdale, CA 93599 (the "Facility") on October 16, 2023, when she was exposed to harmful chemicals through negligent packaging, disclosure, warnings, and practices while performing her duties as a security guard, causing Plaintiff to sustain injuries.

On November 12, 2025, Lockheed Martin filed its Answer.

On December 15, 2025, Baggett filed its Answer.

On August 18, 2026, Baggett filed its Motion for Leave to File a Cross-Complaint. Both Lockheed Martin and Plaintiff have filed separate Statements of Non-Opposition to the motion.

II. Legal Standard

Standard for Leave to File a Cross-Complaint – A party against whom a cause of action has been asserted in a complaint may file a cross-complaint setting forth any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him, or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the case brought against him. (Code Civ. Proc., § 428.10, subd. (b).)

"A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint." (Code Civ. Proc., § 428.50, subd. (a).) "Any other cross-complaint may be filed at any time before the court has set a date for trial." (Code Civ. Proc., § 428.50, subd. (b).) A party shall obtain leave of court to file any cross-complaint not filed before or at the same time as the answer to the complaint or not filed at any time before the Court has set a date for trial. (Code Civ. Proc., § 428.50, subd. (c).) "A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to...file a cross-complaint, to assert such cause at any time during the course of the action." (Code Civ. Proc., § 426.50.)

Leave may be granted in the interest of justice at any time during the course of the action. (Code Civ. Proc., § 428.50, subd. (c).) Where the proposed cross-complaint arises out of the same transaction as the plaintiff's claim, the court must grant leave to file the cross-complaint so long as the defendant is acting in good faith and all other statutory requirements have been satisfied, and leave shall be liberally granted to avoid forfeiture of causes of action. (Code Civ. Proc., § 426.50; see also *Silver Orgs. V. Frank* (1990) 217 Cal.App.3d 94, 99 ["motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result," and "[f]actors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith"].)

III. Discussion

Application – Baggett moves for leave to file a Cross-Complaint against Haas Group International LLC (“Haas”) and Wesco Aircraft Hardware Corp., dba Incora (“Incora”) pursuant to Code of Civil Procedure section 428.50, subdivision (c) on the grounds that 1) the proposed Cross-Complaint arises out of the same transaction or occurrence as does Plaintiff’s Complaint against Defendants and 2) allowing such filing is in the interests of justice and will promote the efficient resolution of claims between the parties. (Motion, p. 1:26-2:3.) This action is set for trial on February 26, 2027.

Baggett asserts that it never received notice from Lockheed Martin indicating the subject shipment sent by Baggett was damaged or compromised in any way, that photographs taken on October 16, 2023 contain no indication that the shipment was damaged or compromised, and that Baggett was unaware of Plaintiff’s claim for injuries and damages arising from the incident until the filing of the complaint. (Motion, p. 3:9-19; Schuler Decl., ¶¶ 4-6.) Since Baggett became aware of Plaintiff’s action, the parties have exchanged written discovery responses and documents, which indicate the shipment sent by Baggett did not appear damaged or to have spilled, leaked, seeped, or otherwise escaped their packaging to be able to cause exposure. (Motion, p. 3:20-27; Schuler Decl., ¶¶ 8-9.)

Baggett asserts Plaintiff produced photographs of the contents of Baggett’s trailer that show the company name “HAAS” on one of the containers, and on March 17, 2026, Baggett identified and produced documents showing Incora was the shipper of the contents that Baggett delivered to Lockheed Martin on October 16, 2023. (Motion, p. 3:27-4:4; Schuler Decl., ¶¶ 9-10.) Since this discovery exchange, Baggett has continued fact investigation and discovery to discovery theories on how the alleged exposure could have occurred and who many be responsible, and based on its findings, Baggett is informed and believes that Haas is the manufacturer of certain contents in Baggett’s trailer on October 16, 2023, and Incora was the shipper of such contents to the Facility, thereby identifying both entities as potentially responsible parties. (Motion, p. 4:4-12.)

Baggett seeks leave to file a Cross-Complaint to assert causes of action for (1) Equitable Indemnity, (2) Contribution, and (3) Declaratory Relief against Haas and Wesco based on their potential liability for the alleged exposure. (Schuler Decl., Ex. A.) Baggett’s counsel asserts he spoke with counsel for Plaintiff and Co-Defendant Lockheed Martin, that both counsel advised they would not oppose the motion, and both have since filed statements of non-opposition. (Schuler Decl., ¶ 14.)

Baggett’s proposed Cross-Complaint arises from the same transaction or occurrence as Plaintiff’s underlying Complaint, being her alleged exposure to harmful chemicals. The Court also finds that Baggett is acting in good faith, requesting leave to file following exchange of discovery leading to the information necessary for discovering Haas and Incora’s respective potential liability for the incident underlying the Cross-Complaint. Plaintiff does not oppose the filing of the Cross-Complaint, and Baggett appears to have moved in a non-dilatory and reasonable manner in moving for leave.

Accordingly, Baggett’s motion is GRANTED.

The Court notes that page 4 of the proposed Cross-Complaint appears to have inadvertently been attached out of order as the last page of the Cross-Complaint. Baggett shall ensure the Cross-Complaint is properly formatted and file the proposed Cross-Complaint within five (5) days of this Order.

IV. Conclusion

Defendant Baggett Transportation Company’s Motion for Leave to File a Cross-Complaint is GRANTED. Defendant Baggett Transportation Company shall file the Proposed Cross-Complaint within five (5) days of this Order.